

official circles supported by legal writers. Story once said that the government does not undertake to guarantee to any persons the fidelity of any of the officers or agents whom it employs, since that would involve it, in all its operations, in endless embarrassments, and difficulties, and losses, which would be subversive of the public interests.

If a law which gave to the injured party a substantial remedy were really subversive of the public interest, we would not propose that such a law should be made, even though we sympathised with the injured party; but if there be no fear of the subversion of the public interest, we should certainly give a remedy in accordance with justice and good policy.

Although some writers think that such a law would involve the government in endless embarrassment, we have grave doubt on the subject. Merchants have keen eye to economy, and do not come to the court for motives of mere pleasure or vengeance; they resort to the court only after they have ascertained that they have an undoubted right of action, and right of recovery; or, at least, that they have ground for thinking so. The fact that, in spite of their having a right of action against the master, mates, or other wrong-doers of the ship, they do not proceed against those persons shows the practical view they take. Moreover, statistics of the Shipping Gazette, Nautical Magazine, Fair Play, Syren and others show the law suits between private shipowners even are not so numerous as we might expect.